

56	Wild Rivers Waterpark Irvine SPE, LLC vs. Whitewater West Industries LTD 23-01353136	Motion for Attorney Fees The Motion for Attorneys’ Fees brought by Wild Rivers Waterpark Irvine SPE, LLC is DENIED. “The owner of property or the owner of any interest in property subject to a claim of lien may petition the court for an order to release the property from the claim of lien if the claimant has not commenced an action to enforce the lien within the time provided in Section 8460.” (Civil Code, § 8480, subd. (a).) “An owner of property may not petition the court for a release order under this article unless at least 10 days before filing the petition the owner gives the claimant notice demanding that the claimant execute and record a release of the claim of lien.” (Civil Code, § 8482.) Civil Code section 8484 outlines the required contents, for a “petition for release order,” while Civil Code section 8486 outlines the timing requirements for a hearing thereon. Finally, Civil Code section 8488 states, in relevant part: “The prevailing party is entitled to reasonable attorney’s fees.” (Civil Code, § 8488, subd. (c).) The above provisions have been interpreted as limiting the recovery of statutory fees, to petitions brought specifically under Civil Code sections 8480 and 8482: “[T]he Bankruptcy Court disagrees with Plaintiff that the attorneys’ fees provision of California Civil Code § 8488(c) generally provides for attorneys’ fees in any proceeding to remove a mechanic’s lien; rather the attorneys’ fee provision relates only to a proceeding on a petition for release of the lien under California Civil Code § 8482, which as Defendants argue was not pleaded in Plaintiff’s complaint or brought in this adversary proceeding.” (<i>In re People Who Care Youth Center, Inc.</i> (Bankr. C.D. Cal. 2023) 2023 WL 6393729, at p. 40.) The above interpretation is in line with the plain statutory language reviewed above, as Civil Code section 8488 expressly refers to a “prevailing party,” following a hearing on a petition for release. Additionally, given this provision immediately follows provisions which outline the requirements for a petition for release, where “the claimant has not commenced an action to enforce the lien within the time provided in Section 8460,” (Civil Code, § 8480, subd. (a)), it is reasonable to interpret the attorneys’ fees provision as being similarly limited. Here, while Wild Rivers Waterpark Irvine SPE, LLC prevailed on a motion to expunge mechanic’s lien, it neither moved nor prevailed, on the basis “the claimant had not commenced an action to enforce the lien within the time provided in section 8460.” (Civil Code, § 8480, subd. (a).) The supplemental briefing offered by Wild Rivers Waterpark Irvine SPE, LLC, does not dispute the above. In addressing Civil Code section 8488, Wild Rivers argues, only, that the provision is reciprocal. (See Supplemental Brief: 2:26-3:8 [ROA No. 112].) While it is true that Civil Code section 8488 provides for fees to the “prevailing party,” it nonetheless remains that recovery pursuant to this provision is limited to “a proceeding on a petition for release of the lien under California Civil Code § 8482....” (<i>In re People Who Care Youth Center, Inc.</i> (Bankr. C.D. Cal. 2023) 2023 WL 6393729, at p. 40.) Based on the above, the Motion for Attorneys’ Fees premised on Civil Code section 8488, subdivision (c) is DENIED.
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		“Attorney’s fees are not available to a prevailing litigant absent a contractual agreement or statutory authorization....” (<i>Abbett Electric Corp. v. California Fed. Savings & Loan Assn.</i> (1991) 230 Cal.App.3d 355, 358.) Here, as Wild Rivers has neither identified an applicable statute which provides for recovery of attorneys’ fees, nor demonstrated that it is the prevailing party on a contract with an attorney fee provision, the motion for attorney fees must be DENIED.
57	Austin vs. Hyundai Motor America 25-01257746	1. Motion for Attorney Fees 2. Motion to Strike or Tax Costs The Court intends to post a Tentative Ruling in the morning.
58	Ally Bank vs. Bashir 26-01538983	Application/Request Plaintiff Ally Bank’s unopposed Application for Writ of Possession against Defendant Ibrahim Bashir for the 2015 BMW I8 motor vehicle, Serial No. WBY2Z2C55FV392288 (the “Vehicle”) is GRANTED. The Court ORDERS Defendant Ibrahim Bashir to turn over to Plaintiff the Vehicle which is believed to be located at 5517 Sugar Maple Way, Fontana, CA 92336. The failure to turn over the Vehicle to Plaintiff may subject Defendant to being held in contempt of court. The Court waives the requirement for Plaintiff to post an undertaking since the amount owed is higher than the estimated value of the Vehicle. Defendant’s re-delivery bond shall be \$42,977.25. Moving Party is to give notice.
60	Hernandez vs. Dieterich 22-01246551	Motion for Summary Judgment and/or Adjudication Defendant George Ahad, M.D.’s motion for summary judgment is DENIED. Defendant Dr. Ahad moves for summary judgment, only. The request for summary judgment is improper as this motion does not seek to dispose of all causes of action asserted against Defendant in the Complaint by Plaintiff. (<i>Miles Laboratories, Inc. v. Superior Court</i> (1982) 133 Cal.App.3d 587, 593 [“A defendant moving for summary judgment has the burden of making a factual showing negating the existence of all causes of action on all theories embodied in the complaint and if he fails to discharge that burden, the motion must be denied”]; <i>Lopez v. Sup. Ct.</i> (1996) 45 Cal.App.4th 705, 717 [a moving defendant has the burden to show it is entitled to judgment with respect to all theories of liability asserted by the plaintiff].)